



Appeal Decisions

Site visit made on 21 July 2026

by **H Jones BA (Hons) DipTP MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 3 September 2026

Appeal A Ref: 6003086

Turnpike Lane, Near Green Lanes Junction, London N8 0PX

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Ms Verity Cheyne (BT Telecommunications PLC) against the decision of the Council of the London Borough of Haringey.
 - The application Ref is HGY/2025/2365.
 - The development proposed is the deployment of a Street Hub 3 unit.
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Appeal B Ref: 6003076

Turnpike Lane, Near Green Lanes Junction, London N8 0PX

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (as amended) against a refusal to grant express consent.
 - The appeal is made by Ms Verity Cheyne (BT Telecommunications PLC) against the decision of the Council of the London Borough of Haringey.
 - The application Ref is HGY/2025/2426.
 - The advertisements proposed are two digital 75-inch LCD display screens, one on each side of the Street Hub unit.
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Decisions

1. Appeal A is dismissed.
2. Appeal B is dismissed.

Preliminary Matters

3. Appeal A relates to the refusal of planning permission for the proposed street hub unit. Appeal B relates to the refusal of advertisement consent for illuminated advertisements which would be an integral part of the street hub unit proposed under Appeal A. I have combined the appeals into a single decision document as they are intrinsically linked, and raise some similar issues, though I have considered each on its individual merits.
4. In respect of Appeal B, the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (as amended) (the 2007 Regulations) make it clear that advertisements are subject to control only in the interests of amenity and public safety. Section 38(6) of the Planning and Compulsory Purchase Act 2004 does not apply to advertisement appeals. Even so, relevant development plan policies can be taken into account as a material consideration in advertisement appeals, and this is the basis on which I have determined Appeal B.
5. On 17 August 2026, a revised version of the National Planning Policy Framework (the Framework) was published. In making my decision, I have had regard to the Framework.

Main Issues

6. For Appeal A, the main issues are:

- The effect of the development on the character and appearance of the area; and
- The effect of the development on highway safety, with particular regard to the safe use of the pavement and driver concentration.

7. For Appeal B, the main issues are:

- The effect of the advertisements on visual amenity; and
- The effect of the advertisements on highway safety, with particular regard to the safe use of the pavement and driver concentration.

Reasons

Character and appearance/visual amenity (Appeals A and B)

8. The appeal sites are situated in an area with many commercial properties and, with Turnpike Lane Station and a busy signalised junction nearby, the area exhibits a bustling character. Street furniture and signage in various guises is commonplace.
9. Despite this, at almost 3 metres (m) in height and over 1.2m in width, the proposed street hub unit would form a bulky and prominent addition to the pavement. Its associated digital display screens would also be substantial in size, each measuring over 1.6m in height and almost 1m in width. This illuminated digital format, together with the scale of the images they would display, means that the advertisements would give rise to intrusive visual effects.
10. In addition, the street hub unit and associated adverts would be positioned only 6.2m away from an existing, pavement-mounted digital advertising unit. During my visit, I also noted another digital advertising unit with integrated defibrillator, is positioned on the opposite side of junction, just north of Turnpike Lane Station. The proposed street hub unit and advertisements would add to the subsisting visual effects of these existing units, creating a proliferation of such units in the area.
11. For these reasons, despite street furniture and signage forming part of the prevailing character of the area, the proposed street hub unit and the associated advertisements would introduce additional street clutter and visually prominent features into the street scene which would be unsympathetic and which would harm visual amenity. This would be the case even though I have no reason to doubt that the condition of the street hub unit and the advertisements would be monitored and well-maintained.
12. The appellant submits that 2 legacy kiosks would be removed albeit, during my visit, I noted that one of them had already been removed. Regardless, the referenced legacy kiosks do not have the large digital advertising screens which are proposed on the street hub unit, and they are/have been located much further from Turnpike Lane Station and the adjacent signalised junction near to the sites. Consequently, the legacy kiosks have not had comparable visual effects to the proposals, and their street scene context is not the same as the immediate surrounds of the appeal sites. Moreover, there is no mechanism before me which

would control that the legacy kiosk which remains would be removed. Therefore, the proposition that both legacy kiosks would be removed does not mitigate or counteract the visual harm the street hub unit and the advertisements would result in.

13. For the reasons given, the development the subject of Appeal A would harm the character and appearance of the area, and the advertisements the subject of Appeal B would harm visual amenity.
14. As a result, the Appeal A and Appeal B proposals conflict with Policy SP11 of Haringey's Local Plan Strategic Policies Document 2013-2016 (the LPSPD) and Policies DM1 and DM3 of Haringey's Development Management Development Plan Document (the DMDPD). Together, and amongst other matters, these Policies expect developments to achieve a high standard of design, to make a positive contribution to place and to result in no adverse effects on the street scene. These proposals also conflict with Policy D8 of the London Plan (the LP) which seeks to ensure that the public realm is well-designed and attractive. The Appeal A proposal also conflicts with Policy D3 of the LP which advocates a design-led approach, seeking to ensure that development is of high quality which positively responds to local distinctiveness and enhances local context.
15. Furthermore, the Appeal A and Appeal B proposals would not respond, integrate with or enhance their surroundings. They would not result in visually attractive, distinctive and characterful development nor, thereby, establish or maintain a strong sense of place and pride. As a result, the proposals conflict with Policy DP3 of the Framework.

Highway safety (Appeals A and B)

16. The proposed street hub unit would be positioned on a wide section of pavement. The unit would create a narrower part of it, but only for a short stretch, and the proposed site plan¹ shows that an unimpeded pavement width of 5.8m would remain beside it. Therefore, the flow of pedestrian traffic would not be hampered.
17. The nearest bus stop is very well-separated from where the street hub unit would be located on the pavement. Consequently, the unit will not interfere with where bus users congregate waiting for buses to arrive. Furthermore, given this separation distance, and the limited amount of pavement the unit would take up, I have no firm grounds on which to conclude that the unit would impede bus users as they board or disembark buses.
18. Together, the nearby junction's signal columns, tactile paving and road markings delineate the pedestrian crossing point. The street hub unit would be sited 2.8m away from the crossing point. Consequently, there would remain ample space at the roadside for pedestrians to safely approach, and congregate at, the crossing point.
19. The junction's signalised design means that it embodies strong safety and highway user control features: principally lights which control the flow of drivers, cyclists and pedestrians. I have no reason to conclude that the junction is not safely designed. Furthermore, the geometry of the roads and pavements in the vicinity of the junction is not complex which assists with maximising visibility. In addition, had I

¹ Proposed Site Plan, Drawing No. 24006938_PLN_SI_2.1

been minded to allow Appeal B, I could have imposed conditions which would have exerted control over the advertisements, including that they could not display moving images. For these reasons, the street hub unit and the advertisements would not impair drivers' views, distract them or reduce their response times.

20. Therefore, with particular regard to the safe use of the pavement and driver concentration, the street hub development and the advertisements would not prejudice highway safety.
21. I have no compelling evidence that the legacy kiosks have caused any detriment to highway safety and, moreover, there is no mechanism before me to control the removal of the one which remains. Overall, the provision of the street hub unit and associated advertisements in exchange for the legacy kiosks would not improve highway safety.
22. Consequently, and as relevant to this main issue, the Appeal A and Appeal B proposals comply with Policies DM2 and DM3 of the DMDPD. Together, these Policies require new development to protect, improve and, where appropriate, create safe and accessible pedestrian and cycling routes whilst setting out that advertisements must not cause a hazard to highway users. The Appeal A proposal also complies with LP Policy T4 which requires integration with current and planned transport access, capacity and connectivity and no increases in road danger. The Appeal B proposal also complies with LP Policy D8 and LPSPD Policy SP11 which seek to ensure safe places and public realm.
23. The Appeal A and Appeal B proposals also comply with Policies TR4 and TR6 of the Framework. Together, these Policies advocate that transport considerations should be integral to design, seek to minimise conflict between highway users and seek to prevent developments which would result in any unacceptable impacts on highway safety.

Other Matters

24. The appellant has drawn my attention to some appeal decisions in Brent² which involved a street hub unit and its associated advertisements. The appellant has also highlighted to me that the Council permitted the digital advertising unit 6.2m away. However, planning decisions are heavily dependent on the case-specific evidence and circumstances, and the full details of the cited cases are not before me. As a result, it is not possible to draw accurate comparisons between those schemes and the proposals before me. I have come to my own views on these appeals having regard to the evidence before me and their particular circumstances. For these reasons, the cited cases are of limited weight in my decisions.
25. It may be the case that the particular type of street hub unit proposed, together with its associated advertisements, has been installed in a number of other locations throughout the UK. However, in my first main issue, I have set out the reasons why harmful effects would arise as a result of these particular proposals.
26. The proposals would not give rise to harmful noise emissions or increases in crime or anti-social behaviour. However, an absence of harm in these and other regards

² Appeal Decisions APP/T5150/W/25/3372638 and APP/T5150/H/25/3372640

is a matter of neutral consequence and does not outweigh the harm that I have identified in my first main issue.

Planning Balance

27. The effects of both the Appeal A street hub unit development and the Appeal B advertisements on highway safety would be acceptable. However, this is a neutral consideration which cannot outweigh any harmful effects which would arise. The Appeal A development would harm the character and appearance of the area, and the Appeal B advertisements would harm visual amenity. Consequently, I have found that each of the appeal proposals would conflict with a number of development plan policies.
28. Section 38(6) of the Planning and Compulsory Purchase Act 2004 only applies to the Appeal A development. Given the harm and development plan policy conflicts I have found, even though it complies with some other relevant policies, I conclude that the Appeal A development conflicts with the development plan as a whole.
29. Policy S3 of the Framework sets out a presumption in favour of sustainable development and, since the appeal sites are located within a settlement, instructs that Policy S4 of the Framework applies to the Appeal A and Appeal B proposals. Policy S4 sets out that proposals within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the Framework's national decision-making policies. Policy S4 sets out a non-exhaustive list of situations when the benefits of approving development are likely to be substantially outweighed by adverse effects. This includes a failure to comply with one of the national decision-making policies which state that development proposals should be refused in specific circumstances.
30. The Appeal A street hub unit would provide expanded and improved communication infrastructure to the area which would bring with it social and economic benefits. Given the scale and nature of the development these would be quite modest, nevertheless, having regard to Policy CO1 of the Framework these benefits are of substantial weight.
31. The consideration of advertisements is restricted to the interests of amenity and public safety. Factors relevant to public safety are specified in the Regulations 2007 (as amended). These factors concern safety in relation to various transport modes. Announcements, such as public safety announcements, displayed by advertisements are not cited, nor do they seem very relevant. That said, neither do the 2007 Regulations include an exhaustive list of safety factors. However, even in a scenario whereby I accepted that the display of safety announcements is a public safety matter relevant to the control of advertisements, the benefit derived from it would be modest.
32. As they would harm the character and appearance of the area and visual amenity, I have found that the street hub and the advertisements conflict with Policy DP3 of the Framework. Therefore, the Appeal A street hub development and the Appeal B advertisements each fail to comply with one of the national decision-making policies which state that proposals should be refused in specific circumstances.
33. Overall, having regard to Policy S4 of the Framework, I conclude that the adverse effects of both appeal proposals substantially outweigh their respective benefits. Consequently, the application of Policy S3 of the Framework and its presumption in

favour of sustainable development indicates that the Appeal A and B proposals should be refused.

Conclusion

34. The development the subject of Appeal A conflicts with the development plan as a whole. The material considerations in this case, including the Framework, do not indicate that the appeal should be decided other than in accordance with it. I therefore conclude that Appeal A should be dismissed.
35. The advertisements the subject of Appeal B would harm visual amenity. Having regard to material considerations, including the Framework, I conclude that Appeal B should also be dismissed.

H Jones

INSPECTOR